

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Jaquan Smith,

: Index Number:
Date Purchased:
: Date Filed:

Plaintiff,

: SUMMONS

-against-

:

City of New York, New York City Police Department,
Police Officer Adam Muniz, Shield 31861 of Strategic
Response Group 1 Manhattan and New York City Police
Officers John Doe,

:

:

:

Plaintiff's residence is:
3521 21st Street
Astoria, NY 11106

:

Defendants,

:

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Dated: December 8, 2020
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Adam Muniz, Shield 31861 of Strategic Response Group 1 Manhattan

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

Jaquan Smith,

:

Plaintiffs

:

VERIFIED COMPLAINT

-against-

:

City of New York, New York City Police Department,
Police Officer Adam Muniz, Shield 31861 of Strategic
Response Group 1 Manhattan and New York City Police
Officers John Doe,

:

:

:

Defendants

:

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,

alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Bakary Diane (hereinafter referred to as "SMITH") is a resident of Queens County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Adam Muniz, Shield 31861 of Strategic Response Group 1 Manhattan (hereinafter referred to as "MUNIZ") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or before December 13, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. That on or about April 8, 2020 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about September 17, 2019 at approximately 3:00PM in the vicinity of 1677 Lexington Avenue, New York County, New York, Plaintiff was traveling in a car with another person, Anfernee Clarke, (hereinafter referred to as "CLARKE") when MUNIZ and DOES stopped the car for no lawful reason.

9. That after the car was stopped, CLARKE exited the vehicle wherein MUNIZ and DOES observed CLARKE to have on his person, controlled substances.

10. That at no time did Plaintiff have any controlled substances on his person.

11. That at no time did Plaintiff possess or exercise dominion or control over any controlled substances.

12. That despite knowing that Plaintiff did not possess any controlled substances, MUNIZ and DOES handcuffed and arrested Plaintiff.
13. That at no time had Plaintiff engaged in any unlawful or illegal activity.
14. That after Plaintiff was arrested he was transported to a local New York police precinct.
15. That while Plaintiff was held in the local New York precinct he was confined to a cell with numerous other male prisoners.
16. That after being held in the local New York precinct for several hours, he was transported to New York County Criminal Court, located at 100 Centre Street, New York, NY.
17. That while Plaintiff was held in New York County Central Booking, he was confined to a cell with numerous other male prisoners.
18. That on or about September 18, 2019 Plaintiff was arraigned on docket CR-030311-19NY wherein he was charged with Criminal Possession of a Controlled Substance in the Third Degree and related offenses.
19. That at the arraignment, Plaintiff was released and ordered to return to court.
20. That on and between September 18, 2019 and December 13, 2019, Plaintiff made numerous court appearances until the case against Plaintiff was dismissed upon application of the Office of the New York County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

21. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 20, as if more fully stated herein at length.
22. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

23. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

24. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

25. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

26. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

29. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

34. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by knowing that the law did not allow for the arrest and prosecution of Plaintiff, they continued to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, MUNIZ and DOES persisted in their false claim that Plaintiff possessed controlled substances despite the controlled substances being on the person of CLARKE.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. At all times pertinent hereto, MUNIZ and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

38. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MUNIZ and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

40. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MUNIZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

41. That City of New York and New York City Police Department were aware that MUNIZ failed to appreciate and understand the New York State Penal Law and New York State Criminal

Procedure Law in that MUNIZ had been the subject of a lawsuit, McDade v. City of New York et al, index 15CV08520 yet the City of New York and New York City Police Department continued to employ MUNIZ.

42. That City of New York and New York City Police Department were aware that MUNIZ failed to appreciate and understand the New York State Penal Law and New York State Criminal Procedure Law in that MUNIZ had been the subject of a lawsuit, Jones v. City of New York et al, index 16CV08080 yet the City of New York and New York City Police Department continued to employ MUNIZ.

43. That City of New York and New York City Police Department were aware that MUNIZ failed to appreciate and understand the New York State Penal Law and New York State Criminal Procedure Law in that MUNIZ had been the subject of a lawsuit, Grissom v. City of New York et al, index 155187/2017 yet the City of New York and New York City Police Department continued to employ MUNIZ.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38 as if more fully stated herein at length.

45. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

46. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.

Attorney for Plaintiff

888 Grand Concourse

Suite 1H

Bronx, NY 10451

(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 8, 2020

Jason Steinberger
Jason A. Steinberger